

1.

CASE #	CASE NAME	HEARING NAME
CVRI2500309	CAPITAL ACCOUNTING PARTNERS, LLC VS COUNTY OF RIVERSIDE	DEMURRER ON 4 TH AMENDED COMPLAINT

Tentative Ruling:

The Court continues this hearing to October 2, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506266	MCCOLLUM VS COUNTY OF RIVERSIDE	MOTION FOR DISCOVERY OF PEACE OFFICER PERSONNEL AND OTHER DOCUMENTS ("PITCHESS")

Tentative Ruling:

The Court DENIES the motion. As to motion categories 17 and 18, the request is not for peace officer personnel records. As to motion categories 1-11, 19 and 20 plaintiff may obtain his own records through the Public Safety Officers Procedural Bill of Rights Act. As to motion categories 12, 13, 14 and 15, the application is defective under Evid. Code §1043(b) for failing to identify the officers whose records are being sought. As to motion category 16, the motion fails because the supporting declaration failed to show a plausible factual foundation for discovery of Sgt. Burke's records.

This is an action for disability discrimination and related causes of action brought by a former deputy sheriff, plaintiff Michael McCollum, against his former employer, defendant County of Riverside. The basics of McCollum's allegations are that: from November 2020 through October 2021 he was on disability medical leave, returning to work with modified duties that met his need to do stationary work. After six months he was told that these restrictions could no longer be accommodated and was placed on leave again, and in November of 2022, upon returning to work, was told to either quit, take a demotion, or retire. As is relevant to the issues in the pending motion, plaintiff alleges that "he knew of other Deputy Sheriffs who were allowed to maintain their rank after only performing stationary work. Mr. McCollum's restrictions could have easily been accommodated as the County's Sheriff's Department has numerous positions that are stationary, and Mr. McCollum understood that there were several job duties that he could have performed within his restrictions." (Complaint, ¶13.) In both the complaint and the motion plaintiff asserts that the County had allowed other officers to take similar restricted duties as an accommodation.

On December 29, 2025, plaintiff propounded discovery consisting in part of 55 Requests for Production. (Chami declaration, Exhibit "A".) The County responded on March 3, 2026. (Exhibit "B".) The County responded to 54 of the 55 RFP, skipping plaintiff's RFP #10 and renumbering them.

Plaintiff now moves to compel production of certain documents. Plaintiff's motion is not, however, a motion to compel further responses under C.C.P. §2031.310. Rather, plaintiff describes certain documents which he contends are peace officer records and seeks to compel them under *Pitchess v. Superior Court* (1974) 11 Cal.3d 531. Some of these document categories were RFPs, others were not, and where the RFPs matched a document category there are sometimes changes. Plaintiff numbers these requests sequentially without connecting them to a particular RFP.

Analysis

Pursuant to Evid. Code §1043 and Penal Code §832.7, police officer personnel records, or records concerning citizen complaints made against peace officers are privileged and may not be disclosed except under a motion under sections 1043 and 1046, commonly referred to as a "*Pitchess* motion". The *Pitchess* motion must be accompanied by a declaration showing good cause for the disclosure of the records, sets forth the materiality of the records, and stating upon reasonable belief that the governmental agency has the requested documents. (Evid. Code §1043subd. (b)(3).) Good cause may be sufficiently specific to preclude the possibility of merely seeking helpful information. (*People v. Mooc* (2001) 26 Cal.4th 1216, 1226.) The moving party only needs to show a plausible factual foundation for discovery. (*Warrick v. Superior Court* (2005) 35 Cal.4th 1011, 1019.) All that is required is the presentation of a scenario that may have or could have occurred, which is a relatively low threshold. (*Uybungco v. Superior Court* (2008) 163 Cal.App.4th 1043, 1048.) An attorney declaration based upon information and belief and containing hearsay may be used to evidence good cause in support of a *Pitchess* motion. (*Haggerty v. Superior Court* (2004) 117 Cal.App.4th 1079, 1086.)

"Good cause for discovery exists when the defendant shows both "'materiality' to the subject matter of the pending litigation and a 'reasonable belief' that the agency has the type of information sought." [Citation.] A showing of good cause is measured by "relatively relaxed standards" that serve to "insure the production" for trial court review of "all potentially relevant documents." (*Warrick*, 35 Cal.4th 1011, 1016.) It "is a 'relatively low threshold for discovery.'" (*Warrick*, 35 Cal.4th 1101, 1019.)

The *Pitchess* procedure is the sole method for obtaining "the personnel records of peace officers and custodial officers and records maintained by a state or local agency pursuant to Section 832.5, or information obtained from these records...." (Penal Code §832.7(a); *City of Los Angeles v. Superior Court* (2002) 29 Cal.4th 1, 21 [describing this procedure as "the sole and exclusive means" by which citizen complaints may be obtained] and *Garden Grove Police Department v. Superior Court* (2001) 89 Cal.App.4th 430, 434-435.) "Personnel records" are defined as any file maintained under that individual's name by his or her employing agency and containing records relating to any of the following:

1. Personal data, including marital status, family members, educational and employment history, home addresses, or similar information.
2. Medical history.
3. Election of employee benefits.
4. Employee advancement, appraisal, or discipline.
5. Complaints, or investigations of complaints, concerning an event or transaction in which he or she participated, or which he or she perceived, and pertaining to the manner in which he or she performed his or her duties.
6. Any other information the disclosure of which would constitute an unwarranted invasion of personal privacy.

(Penal Code §832.8(a).) The twenty requests in the motions can loosely be grouped into four categories:

- A. **Records regarding the plaintiff himself:** These are motion categories 1-11, 19, and 20 (communications about plaintiff's job performance outside his personnel file, documents relating to work performance, communications criticizing plaintiff's work performance, documents regarding internal investigations involving plaintiff, documents regarding plaintiff's disability, documents regarding plaintiff's leaves of absence, documents regarding plaintiff's accommodations, documents regarding the interactive process between plaintiff and defendant, documents regarding the decision on whether plaintiff could return to work, documents regarding defendant's determination that plaintiff could not perform essential functions, documents relied on in determining that plaintiff could not perform essential functions, statements or reports regarding the allegations in plaintiff's complaint, and reports responsive to form interrogatory 12.6).
- B. **Records relating to unnamed other peace officers:** These are motion categories 12, 13, 14, and 15 (evaluation, accommodations, etc. of other deputy sheriffs, identifying all deputy sheriffs medically retired for inability to perform essential functions, identifying all deputy sheriffs who remained employed despite being medically restricted to stationary work, and correspondence between defendant and other deputy sheriffs regarding accommodations).
- C. **Records relating to a named peace officer:** A single motion category fits here: #16 (correspondence regarding Sergeant John Burke's accommodation).
- D. **Records that do not relate to any peace officer:** Motion categories 17 and 18 fit this (documents reflecting available stationary positions at the sheriff's department and documents reflecting training or recruiting positions).

This fourth grouping does not qualify as peace officer records under the section 832.8(a) definition. To the extent plaintiff addresses this in the reply, it is to argue that motion categories 17 and 18 are relevant to his claims. But that does not make them peace officer records. If plaintiff is to recover these documents, he needs to go through the usual discovery process of the Discovery Act and bring a motion to compel further responses under C.C.P. §2031.310.

Plaintiff's own records (the "A" grouping above) are documents that he has his own right to inspect and/or copy under Gov. Code §3306.5. By both parties' accounts several documents within these categories appear to have been produced. From the meet-and-confer letters it appears that other documents have been withheld: documents relating an internal investigation, some attorney-client communications, and so on. But the *Pitchess* procedure does not appear to be the appropriate procedure by which to obtain these documents. Plaintiff may inspect his own personnel file; if there are grounds for withholding these documents, determination of the scope of plaintiff's right to inspect comes out of the Public Safety Officers Procedural Bill of Rights Act (Gov. Code §§3300 et seq.), not the *Pitchess* procedure.

For a third party to obtain peace officer personnel records, Evid. Code §1043 requires that the motion provide:

(b) (1) Identification of the proceeding in which discovery or disclosure is sought, the party seeking discovery or disclosure, the peace or custodial officer whose records are sought, the governmental agency that has custody and control of the records, and the time and place at which the motion for discovery or disclosure shall be heard.

(2) A description of the type of records or information sought.

(3) Affidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records.

(c) Upon receipt of a notice served pursuant to subdivision (a), the governmental agency shall immediately notify the individual whose records are sought.

(d) No hearing upon a motion for discovery or disclosure shall be held without full compliance with the notice provisions of this section except upon a showing by the moving party of good cause for noncompliance, or upon a waiver of the hearing by the governmental agency identified as having the records.

The identification of the officer whose records are sought is not merely informational under subdivision (b)(1); the officer is entitled to notice under subdivision (c). Here only one officer has been identified: Sergeant John Burke. However, the supporting declaration does not even mention Sgt. Burke and therefore, by definition, does not show a plausible factual foundation under *Warrick* for discovery of his records.

As for the unnamed officers, plaintiff indicates in the reply that he does not know the names of the officers whose records he is seeking under this request. But the fact that plaintiff does not know their names does not mean that the Court can ignore the requirement in section 1043(b)(1) that they be identified in the request before their records can be inspected—it means that plaintiff cannot use the personnel records to find the identities of the persons whose personnel records he wants to see.